

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUWT055074: RICHARD HERNANDEZ vs G W SURFACES

07/08/2026 in Department 21

Motion to Compel Further Responses to Requests for Admission, Set One and Request for Monetary Sanctions

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Compel Further Responses to Requests for Admission, Set One and Request for Monetary Sanctions (*Unopposed*)

Tentative Ruling:

Plaintiff Richard Hernandez’s motion to compel further responses to Requests for Admission (“RFA”), Set One, is GRANTED in part and DENIED in part. The request for monetary sanctions is DENIED.

The Court rules as follows:

- (a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.
- (b) Each answer shall:
 - (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.
 - (2) Deny so much of the matter involved in the request as is untrue.
 - (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.

(CCP, § 2033.220.)

RFA Nos. 5, 16, 22, 23, 48, 87, 88, 89: DENIED. Plaintiff argues that Defendant's responses that contain denials are false because other evidence contradicts the denials. This is not a valid basis to move for a further response. Defendant's responses are complete and code compliant. No further responses are warranted.

RFA No. 24: GRANTED in PART. Defendant's "legal opinion and conclusion" objection is overruled. Whether Plaintiff's medical condition constituted a FEHA disability is a proper application-of-law-to-fact RFA. (CCP § 2033.010; *City of Glendale v. Marcus Cable Associates, LLC* (2015), 235 Cal.App.4th at pp. 353-354.) The Court finds the substantive response complete and code compliant. No further response is required.

RFA No. 31: GRANTED in PART. Defendant's "legal conclusion" objection is overruled. Whether a 15-minute break every two hours would have been a reasonable accommodation is a proper subject for an RFA. The Court finds the substantive response complete and code compliant. No further response is required.

RFA No. 90: DENIED. The actual request asks Defendant to admit that Plaintiff suffered damages as a result of being terminated. Defendant served an unqualified denial. Plaintiff's separate statement appears to misidentify RFA No. 90 as duplicative of RFA No. 89 and argues only that Defendant should review timekeeping records. That argument does not establish that the denial of damages is evasive, incomplete, or subject to an improper objection under CCP § 2033.290. No further response is required.

RFA No. 91: GRANTED in PART. Defendant's "legal opinion and conclusion" objection is overruled. RFAs may seek admissions concerning legal propositions tied to the case. The Court finds the substantive response complete and code compliant. No further response is required.

RFA No. 94: GRANTED in PART. Defendant's "legal conclusion" and "assumes facts" objections are overruled. The Court finds the substantive response complete and code compliant. No further response is required.

Sanctions: Plaintiff's request for monetary sanctions is DENIED. The motion was almost entirely unsuccessful. Defendant did not file an opposition to the motion, only the request for sanctions. Additionally, the notice of motion fails to identify the specific person or party against whom the sanction is sought. (CCP §2023.040.)

Counsel for Plaintiff is ordered to give notice of the Court's ruling.